



CHAPTER clxix.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Busby and District Gas Longford Gas Preston Gas and Uxbridge Gas. A.D. 1911.

[18th August 1911.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Viet.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 4) Act 1911. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirma-
tion of
Orders in
schedule.

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Restriction
on power to
take houses
of working
class under
Longford
Gas Order.

3.—(1) The Undertakers named in the Longford Gas Order hereby confirmed shall not under the powers of that Order purchase or acquire any house or houses which on the fifteenth day of December last were occupied either wholly or partly by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board for Ireland any house or houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the said Undertakers acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board for Ireland by action in the High Court in Ireland and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that any court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artisans labourers and others not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

S C H E D U L E.

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LIST OF ORDERS.

BUSBY AND DISTRICT GAS.—Order empowering the Busby and District Gas Company Limited to maintain and continue their existing gasworks in the parishes of Cathcart and Mearns in the county of Renfrew and to supply gas within part of the parish of Mearns in the said county and within parts of the parishes of East Kilbride and Carmunnock in the county of Lanark and for other purposes.

LONGFORD GAS.—Order empowering the Longford District Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas within the urban district of Longford and adjacent parishes in the county of Longford and for other purposes.

PRESTON GAS.—Order authorising the Preston Gas Company to reduce the illuminating power of their gas and for other purposes.

UXBRIDGE GAS.—Order extending the limits of supply of the Uxbridge Gas Company and empowering that company to maintain continue and enlarge existing gasworks and to supply gas in certain parishes in the counties of Buckingham and Hertford and for other purposes.

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BUSBY AND DISTRICT GAS.

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District.*

Order empowering the Busby and District Gas Company Limited to maintain and continue their existing gasworks in the parishes of Cathcart and Mearns in the county of Renfrew and to supply gas within part of the parish of Mearns in the said county and within parts of the parishes of East Kilbride and Carmunnock in the county of Lanark and for other purposes.

Preliminary.

Short title.

1. This Order may be cited as the Busby and District Gas Order 1911.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation of Acts.

3.—(1) The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by or are inconsistent with the provisions hereof.

(2) The said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. Provided that for the purpose of such incorporation section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and section 35 of the said Gasworks Clauses Act 1847 shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to the special purposes fund.

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4. In this Order "the authorised rates" means the rate of dividend authorised by this Order on the capital of the Undertakers or such rate as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking by this Order authorised (including the gasworks and works connected therewith by this Order authorised to be continued constructed and maintained).

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Interpreta-
tion.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the several parts of parishes hereinafter described namely:—

Limits of
Order.

So much of the parishes of Carmunnock and East Kilbride in the county of Lanark and so much of the parish of Mearns in the county of Renfrew as is included within the following boundaries viz. :—

Commencing at a point on the boundary between the parish of Carmunnock and the parish of Cathcart nine hundred yards or thereby measured in a south-westerly direction from the south-west corner of Aikenhead House thence in a south-easterly direction in a straight line to a point on the boundary between the parish of Carmunnock and the parish of East Kilbride six hundred and seventy yards or thereby measured in a south-westerly direction from the south-west corner of South Farm Steading thence in a south-south-westerly direction in a straight line to a point where the centre line of the road leading from the Busby and East Kilbride road to the Kilnarnock and East Kilbride road crosses the Caledonian Railway (East Kilbride Extension) thence in a west by northerly direction in a straight line to the point where the Earn Water joins the White Cart Water thence in a west-north-westerly direction in a straight line to a point in the centre line of the old Glasgow and Mearns public road twenty yards or thereby measured in a south-westerly direction from a point where the centre line of said public road crosses the Broom Burn thence in a north-north-westerly direction in a straight line to a point one hundred and sixty yards or thereby measured in a north-north-easterly direction from the northernmost corner of Rysland Farm Steading thence in a north-easterly direction in a straight line to the centre of the Broom Burn

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at a point seventy-five yards or thereby north-westward from the point where the centre of the public road from Glasgow to Kilmarnock crosses the Broom Burn thence in a south-easterly direction along the centre of the Broom Burn to the point last mentioned thence in a north-easterly direction along the centre of said public road to a point where the centre line of the public road called Broom Road meets the said Glasgow and Kilmarnock road thence in a south-south-easterly direction along the centre of the said Broom Road until it meets the centre line of the public road called Roddinghead Road thence in an easterly direction along the centre line of the said Roddinghead Road to a point two hundred and eighty-five yards or thereby measured in a north-westerly direction from a point where the centre line of said Roddinghead Road meets the centre line of the old Glasgow and Mearns public road thence in a north-easterly direction along the march between Netherton and Greenbank estates (but excluding all portions of the first-mentioned estate) to a point where the said march meets the boundary between the parish of Mearns and the parish of Eastwood six hundred yards or thereby measured in an east-south-easterly direction from where the centre line of said Glasgow and Kilmarnock public road crosses the boundary between said parishes thence in an easterly direction along the said boundary between the parishes of Mearns and Eastwood to a point where the boundaries of the parishes of Mearns Eastwood and Cathcart meet (but excluding all portions of said parishes of Eastwood and Cathcart) thence again in an easterly direction along the boundary between the parish of Mearns and the parish of Cathcart to a point at the centre of the White Cart Water where the parishes of Mearns Cathcart and East Kilbride meet thence in a north-easterly direction along the boundary between the parishes of Cathcart and East Kilbride to a point at the junction of the Kittoch Water and White Cart Water where the parishes of Cathcart and East Kilbride and Carmunnock meet thence in a north and north-easterly direction along the boundary between the parishes of Cathcart and Carmunnock to the point of commencement Provided that the Undertakers shall not supply gas to any premises within the limits of supply which on the thirty-first day of December one thousand nine hundred and ten were supplied with gas by the Mearns Gas Light Company Limited or the East Kilbride Gas Light Company.

The area comprised within the limits of supply is more particularly delineated upon a map deposited with the Board of Trade and signed

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by an assistant secretary to the Board and if there should be any difference between the description in this section contained and the area delineated upon such map the latter shall prevail.

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Provided that the portion of the limits of supply to the north-west of a line drawn from a point on the boundary of the parishes of Cathcart and Mearns one hundred and fifty yards or thereabouts measured in a south-easterly direction from the point at which that boundary is crossed by the road leading from Clarkston to Mearns at or near the point marked "Stone" on the six-inch Ordnance map second edition 1899 of Eastern Division (Renfrewshire) to a point in the said road two hundred and twenty yards or thereabouts north-eastwards from its junction with the road leading to and past Crofthead and Burnhouse shall form no part of the limits of supply if the corporation of the city of Glasgow in the session 1912 obtain authority from Parliament to supply gas within the said portion of the limits of supply and the powers of the Undertakers as regards the said portion of the limits of supply shall only be operative if the corporation fail in that session to obtain such authority.

Undertakers.

6. The Busby and District Gas Company Limited shall be the Undertakers. Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

7. The share capital of the Undertakers shall not for the purposes of the undertaking exceed ten thousand pounds unless the Undertakers are hereafter authorised to raise for such purposes additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

8. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the said capital than the standard rate of dividend hereinafter mentioned namely five pounds in respect of every one hundred pounds of such capital.

9. The amount of all moneys to be hereafter borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital actually raised by the issue of shares or stock and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

10. The Undertakers shall transfer to a separate account to be applied as hereinafter provided a sum of one thousand pounds part

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A.D. 1911. of the amount standing to the credit of reserve in the accounts of the Undertakers as on the thirty-first day of May 1910.

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ing to credit
of reserve.

All sums at any time standing to the credit of the said separate account shall be applied only to purposes to which capital is properly applicable and shall not be considered part of the capital of the Undertakers entitled to dividend.

The said sums may be applied towards defraying the cost of future extensions of the mains pipes and works of the Undertakers.

Purchase of Lands.

Power to
purchase
additional
land by
agreement.

11. The Undertakers may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands described in the schedule to this Order annexed any lands which they may require. In this Order the term "the additional lands" shall mean any lands so acquired under the powers of this section - Provided that they shall not at any time hold for such purposes more than five acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that the Undertakers shall not manufacture gas or residual products or store gas upon any lands except the lands described in the said schedule.

Power to
erect &c.
cottages for
officers and
servants.

12. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Maintenance and continuance of Gasworks—Manufacture and Sale of Gas Coke and Residual Products.

Undertakers
may main-
tain and
continue gas-
works on
lands de-
scribed in
schedule and
may make
and sell gas
&c.

13. The Undertakers on the lands shown on the map deposited for the purposes of this Order and described in the schedule to this Order annexed while they are possessed of the same may maintain and continue alter enlarge improve re-erect renew or discontinue their existing gasworks and works connected therewith for the manufacture utilisation distribu- tion and storage of gas and of coal tar coke and ammoniacal liquor and they may subject to the provisions of this Order manufacture and store gas on such lands and supply and sell the same within the limits of supply and may on the same lands store coal tar coke pitch and asphaltum and manufacture and store ammoniacal liquor and sulphate of ammonia and may sell and dispose of the same at the works and elsewhere and they may also deal in and sell lime at their works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

Power to
maintain
mains in
parish of
Cathcart.

14. The Undertakers may for the purposes of the supply of any district or place within the limits of supply continue maintain repair alter enlarge renew or remove the mains and pipes laid down before

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the commencement of this Order within the said parish of Cathcart and for those purposes or any of them shall have and may exercise within that parish the powers of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

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15.—(1) The Undertakers may within the limits of supply sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or such rents and charges and make such terms and conditions as may be agreed upon.

Power to
supply gas
fittings
Fittings not
to be subject
to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's hypothec or remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

16.—(1) Subject as hereinafter provided all engines motors fittings apparatus and appliances of the Undertakers now out on hire or let by the Undertakers on hire under the provisions of this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines motors fittings apparatus and appliances are or shall be fixed.

Engines &c.
though fixed
to premises
to remain
property of
Undertakers.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors fittings apparatus and appliances as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

17.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied

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through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove;

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Power to
take licences
for use of
patents.

18. The Undertakers may subject to the provisions of this Order but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from the materials used therein.

Power to con-
tract for sale
of gas in
bulk.

19. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Undertakers to lay any main or interfere with any street beyond the limits of supply.

For pro-
tection of
Caledonian
Railway
Company.

20. For the protection of the Caledonian Railway Company (in this section called "the railway company") the following provisions unless otherwise agreed upon between the Undertakers and the railway company shall apply:—

- (1) Before commencing any works or operations affecting any railway siding station approaches or bridge of the railway company or works connected therewith or the roadway on such bridge or thereunder or the approaches thereto the Undertakers shall submit plans sections working drawings and specifications of such works or operations to the railway company for their approval and the said works and

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operations shall be constructed and carried on in conformity only with the said plans sections working drawings and specifications at the sole cost of the Undertakers and at the sight and to the reasonable satisfaction of the railway company's engineer and such works shall thereafter be maintained and repaired by the Undertakers under his superintendence Provided that the approval of the railway company as aforesaid shall not be unreasonably withheld and that it shall be deemed to have been given unless the railway company signify their disapproval and the ground thereof within twenty-one days after submission of the said plans sections working drawings and specifications:

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- (2) The Undertakers shall not in the construction laying maintenance alteration or repair or use of the proposed or existing mains pipes or other works over or under any railway of the railway company injure alter or interfere with the structure of any bridge of the railway company or of any of the sidings or works of the railway company or cause any interruption to or interference with the traffic of the railway company:
- (3) If for any reason arising from the construction or existence of any of the said mains pipes or other works it may be necessary to reconstruct or alter or strengthen the structure of any bridge belonging to or maintainable by the railway company the Undertakers shall bear the whole expense of such reconstruction alteration or strengthening and the work thereof shall be carried out by the railway company:
- (4) If any injury to or interference with any railway siding station approaches bridge or works of the railway company or any interruption to the traffic on the railways shall arise or be occasioned at any time by the works or operations of the Undertakers they shall forthwith make good or remove such injury interference or interruption at their own expense or the railway company in their option may execute the necessary works for that purpose at the expense of the Undertakers and the Undertakers shall repay to the railway company all costs and expenses incurred by them in so doing and shall make full compensation to the railway company for all loss or damage sustained by the railway company in consequence of such injury interference or interruption:
- (5) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the railway company from maintaining and repairing and when necessary deviating altering or reconstructing their railway sidings station approaches bridges or other works of the railway company without

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interference on the part of the Undertakers and without incurring any liability to the Undertakers or to any party using their mains or pipes for any loss injury damage or expense which may arise from such maintenance deviation repair alteration or reconstruction and any extra expense which the railway company may incur in such maintenance deviation repair alteration or reconstruction by reason of the laying construction or existence of the said mains pipes or other works of the Undertakers shall be paid by the Undertakers Provided that all such operations shall be executed by the railway company in such manner as to cause as little interruption or inconvenience as practicable to the Undertakers and the railway company shall give fourteen days' notice in writing to the Undertakers before commencing any such operations and the same so far as interfering with the mains pipes or other works of the Undertakers shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Undertakers :

- (6) Any question or difference between the Undertakers and the railway company or their respective engineers or any of them arising under the foregoing provisions of this section shall be determined by an arbiter to be agreed upon between the Undertakers and the railway company or failing agreement to be nominated by the Board of Trade on the application of either party.

For protec-
tion of county
authorities.

21. In the exercise of the powers conferred by this Order so far as they affect highways bridges and works therein in the counties of Lanark and Renfrew the following provisions for the protection of the county council of the county of Lanark and the district committees of the middle and lower wards of the said county and the county council of the county of Renfrew and the district committee of the first or upper district of said county who for their respective rights jurisdictions and interests are hereinafter referred to as "the county authorities" shall (except so far as otherwise agreed between the county authorities and the Undertakers) have effect (that is to say) :—

- (1)—(a) All mains pipes and works to be laid in or along any highway or in upon or across any bridge repairable by the county authorities or the roadway over the same or approaches thereto shall be laid in such position in such highway bridge roadway or approaches or at the side thereof and at such depth as the county authorities may reasonably direct ;
(b) In all cases where the Undertakers propose to lay mains pipes and works in proximity to any mains sewers pipes or other works belonging to the county authorities these shall be laid in such positions and at such levels in

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relation to the mains sewers pipes and works of the county authorities as the county authorities may reasonably direct: A.D. 1911.

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- (2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall subject to the provisions of this section extend and apply to all highways and bridges and the roadways over the same and the approaches thereto and to all other property of the county authorities opened and broken up or interfered with by the Undertakers in the exercise of the powers of this Order. Provided that the notice required by the eighth section of that Act shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst as to which notice shall be given thereafter as soon as may be) be not less than in the case of a bridge or the approaches thereto one month and in all other cases fourteen days and with such notice there shall in every case (except as aforesaid) be sent a plan and section showing the proposed works:
- (3) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any bridge repairable by the county authorities without the consent in writing of the county authorities which consent shall not be unreasonably withheld and may be given upon such conditions as the county authorities may reasonably determine:
- (4) No sewer or water pipe or other works or property of the county authorities shall be in any way altered or interfered with except in accordance with plans sections and specifications previously submitted to and approved of by the county authorities and any such alteration or interference shall be made at the expense of the Undertakers:
- (5) The county authorities shall not be liable for or in respect of any damage or injury to any mains pipes or other works of the Undertakers laid down or constructed under the powers of this Order in or on any highway or bridge or the roadway over a bridge or the approaches thereto caused by the use of road-rollers and other road plant and heavy traffic or resulting from the exercise by the county authorities of the powers vested in them from time to time:
- (6) Nothing in this Order contained shall take away or abridge any power vested or to be vested in the county authorities to construct build lay repair maintain open or break up alter enlarge improve divert relay or reconstruct any highway road street bridge or any sewer drain main pipe channel or conduit or other works of the county authorities and in the

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event of the county authorities in the exercise of any such power finding it necessary to interfere with any pipes works or fittings of the Undertakers the Undertakers shall within fourteen days after receiving notice in writing at their own cost alter relay or if necessary remove such pipes works or fittings temporarily or permanently as may be reasonably required to meet the new or changed conditions. Provided that during such alteration relaying or removal the Undertakers shall be entitled to all reasonable facilities for temporarily carrying or supporting such pipes works or fittings:

- (7) All works shall be so executed by the Undertakers as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any highway or over any bridge carrying any highway or the approaches thereto:
- (8) The Undertakers in opening or breaking up the highways bridges or roadways under the jurisdiction of the county authorities shall not without the consent of the county authorities have more than one hundred lineal yards open or broken up at one time in any such highway bridge or roadway which does not exceed two hundred and twenty yards in length and in the case of any highway or roadway exceeding two hundred and twenty yards in length the Undertakers shall leave an interval of at least two hundred and twenty yards between any two places at which they may open or break up the highway or roadway and the Undertakers shall complete their operations and restore the said highway bridge or roadway and the surface thereof to the satisfaction of the county authorities with all reasonable despatch and maintain the same for a period of twelve months from the date of a certificate by the county authorities or their surveyor certifying that such highway bridge or roadway has been satisfactorily restored:
- (9) In the event of the county authorities deciding at any time to apply for powers to supply electric light within any portion of their district situate within the limits of supply the Undertakers shall not oppose any such application:
- (10) The Undertakers shall if required by the county authorities supply such county authorities with gas for the purposes of the public lighting of any portion of any special lighting district formed or which may be formed by the county authorities which is within the limits of supply or for the public lighting of any highway within such limits at a price not exceeding the current price for the time being charged to private consumers as the same may be agreed

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upon between the Undertakers and the county authorities or failing agreement be determined by arbitration as hereinafter in this section provided and if any portion of such special lighting district or highway be outside but adjoin such limits the Undertakers shall if required by the county authorities so far as they competently may also supply such county authorities with gas for the purposes of the public lighting of such portion or such highway at such price as may be agreed upon between the Undertakers and the county authorities or failing agreement be determined by arbitration as hereinafter in this section provided :

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- (11) The Undertakers shall pay to the county authorities the reasonable costs which they may incur in the repair and reinstatement of so much of any highway or of the roadway of any bridge carrying any highway or the approaches thereto in which the mains pipes and works of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes :
- (12) Any extra expense which may be incurred by the county authorities in carrying out any powers vested or which may be vested in them by any existing or future Act of Parliament or otherwise in consequence of works of the Undertakers already existing or of the construction of works by this Order authorised shall be repaid to the county authorities by the Undertakers :
- (13) The Undertakers shall pay to the county authorities the expenses reasonably incurred by them in relation to the superintendence by the county authorities or their surveyor or other officer of any works to be done by the Undertakers under the provisions of this Order :
- (14) All notices to be given or plans to be submitted under the provisions of this section shall be deemed to be sufficiently served on or submitted to the county authorities if the same be sent to the clerk of the district committee of the middle ward of the county of Lanark so far as relating to works of the Undertakers within the said middle ward district and to the clerk of the district committee of the lower ward of the county so far as relating to works of the Undertakers within the said lower ward district or the clerk to the district committee of the first or upper district of the county of Renfrew so far as relating to works of the Undertakers within the said first or upper district :
- (15) If any difference at any time arises between the county authorities and the Undertakers touching this section or

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anything to be done or not to be done thereunder such difference shall be settled by an arbiter to be agreed upon between them or failing such agreement to be appointed on the application of either party by the sheriff of the county of Lanark so far as relating to any difference between the Undertakers and the Lanarkshire authorities and by the sheriff of the county of Renfrew so far as relating to any difference between the Undertakers and the Renfrewshire authorities.

Differences
with road
authorities
or railway
or other
companies.

22. If any difference arise between the Undertakers and any road authority or railway or other company whose lands or works the Undertakers have power to cross or otherwise interfere with under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Quality of Gas.

Quality of
gas.

23.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within six months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of Gas.

Pressure of
gas.

24.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of

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water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

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(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Testing Place.

25. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place provided by the Undertakers at their works within six months of the commencement of this Order.

Testing
place.

Price of Gas.

26. The standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be five shillings per thousand cubic feet:

Price of gas
with sliding
scale as to
dividend.

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary shares or stock in the capital of the Undertakers as follows:—

In respect of any half year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rates of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds:

And in respect of any half year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rates of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds.

27.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount

Power to
create a
special pur-
poses fund.

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equal to one per centum of the paid-up capital of the Undertakers to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application
of excess of
profits over
authorised
rates of
dividend.

28. If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the authorised rates the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates.

Power to
create a
reserve fund
and applica-
tion thereof.

29. Where in any year the dividend on the ordinary share capital of the Undertakers shall exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividend the Undertakers may in such year set apart such sum as they think fit and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the commencement of this Order may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed

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shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the authorised rates and save as in this Order otherwise provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund.

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District.*

Miscellaneous.

30. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

No penalty
in case of
unavoidable
cause.

31. Where any money is required to be deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Undertakers
to pay in-
terest on
deposit.

32. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

Period of
error in
defective
meters.

33. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas unless he pay the same.

Power to
refuse to
supply per-
sons in debt
for other
property.

34. At least twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to

Gas con-
sumers to
give notice
to Under-
takers before
removing.

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A.D. 1911. the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur Provided that notice of the provisions of this section shall be endorsed upon every demand note for gas rent payable to the Undertakers.

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Anti-fluctuators for gas engines.

35. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Notice of discontinuance.

36. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

8 & 9 Vict. c. 17. s. 142 incorporated.

37. Section one hundred and forty-two of the Companies Clauses Consolidation (Scotland) Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

Time for making up and forwarding accounts to local authorities.

38. Notwithstanding anything contained in section 35 of the Gasworks Clauses Act 1871 the annual statement of accounts of the Undertakers shall be made up to the thirty-first day of May in each year and forwarded to the local authority within the limits of supply on or before the first day of September next following and the said section shall for the purposes of this Order be read and construed as though in lieu of the thirty-first day of December and the twenty-fifth day of March being named therein the thirty-first day of May and the first day of September had been so named.

Power to lay pipes in streets not dedicated to public use.

39. The Undertakers may but only with the consent of the owner of the soil of such street or road on the application of the owner or occupier of any premises within the limits of supply of the Undertakers abutting on or being erected in any street or road laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay and renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act

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1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof. A.D. 1911.
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40. All the costs charges and expenses of and incident to the applying for preparing obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Undertakers. Costs of Order.

SCHEDULE.

Gas Lands.

A plot or area of ground upon which the existing gasworks of the Undertakers are constructed containing by admeasurement one acre one rood and thirty-six poles or thereabouts situated partly in the parish of Cathcart and partly in the parish of Mearns both in the county of Renfrew bounded on the east by the centre line of the River Cart on the south-south-east on the east-north-east and on the west-south-west by property belonging or reputed to belong to the Busby Bleaching and Beetling Company Limited on the south-west by south partly by ground belonging or reputed to belong to the said Busby Bleaching and Beetling Company Limited and partly by ground belonging or reputed to belong to John Stevenson Brown on the west-north-west and west-south-west by ground belonging or reputed to belong to the said John Stevenson Brown and on the north by west and north-east by ground belonging or reputed to belong to James Leitch Watson and others the proprietors of the estate of Overlee.

LONGFORD GAS.

Order empowering the Longford District Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas within the urban district of Longford and adjacent parishes in the county of Longford and for other purposes. Longford.

1. This Order may be cited as the Longford Gas Order 1911. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

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Incorporation of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by this Order and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. Provided that for the purpose of such incorporation section 13 of the said Gasworks Clauses Act 1847 shall be read and construed as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by" the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and also that section 35 of such Act shall be read and construed as if the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates of dividend as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to the special purposes fund.

Interpretation.

4. In this Order the expression "the authorised rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings. And in the construction of this Order or of any such Act for the purposes of this Order the expression "the council" means the urban district council of Longford and "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued.

Limits of Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the urban district of Longford the townlands of Lisbrack Templemichael glebe Ardnacassagh and Knockahaw and so much of the townlands of Aghadegnan Glack and Townparks as is situate in the rural district of Longford all in the parish of Templemichael and in the county of Longford.

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Undertakers.

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Longford.

6. The Longford District Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers shall not for the purposes of the undertaking exceed seventeen thousand pounds consisting of the original share capital already raised by the Undertakers (in this Order referred to as "the original capital") amounting to twelve thousand pounds of which six thousand pounds are ordinary shares and six thousand pounds are preference shares and of additional capital (in this Order referred to as "the additional capital") to be issued subject to the provisions of this Order not exceeding five thousand pounds including any premiums which may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

Additional capital to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of the council and to the committee of the Dublin Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In

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the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in manner prescribed by resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this Order and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of money.

9. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
capital.

10. Except as in this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the original and additional capital than the standard rates of dividend hereinafter mentioned namely seven pounds in respect of every one hundred pounds actually paid up of so much of the original

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capital as is ordinary capital and five pounds in respect of every one hundred pounds of so much of the original capital as is preference capital and seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

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11. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Limits of
 borrowing
 powers.

12. In case in any year or in any half year when a half-yearly dividend is declared the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the authorised rates on each class of ordinary shares in the original and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on
 different
 classes of
 ordinary
 shares to
 be paid pro-
 portionately.

13.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

Power to
 create a
 special
 purposes
 fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

- (A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ; or
- (B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

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(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application
of excess of
profits over
authorised
rates.

14. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall subject to the provisions of this Order be carried to the credit of the divisible profits of the undertaking for the next following year. Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates.

Power to
create a re-
serve fund
and applica-
tion thereof.

15. Where in any year the dividends on the ordinary capital of the Undertakers exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the profits which the Undertakers may make in excess of the standard rates the Undertakers may in such year set apart such sum as they think fit by way of reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the commencement of this Order may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers are insufficient to enable the Undertakers in such year to pay the dividend at the authorised rates on the ordinary capital of the Undertakers and save as by this Order specially provided no sum shall in any year be carried by the Undertakers to any reserve fund.

Purchase of Lands.

Power to
purchase
additional
lands.

16. The Undertakers may for the purposes of the undertaking purchase take on lease (by agreement but not otherwise) and hold in addition to the lands described in the schedule to this Order annexed any lands which they may require. Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that

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they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

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*Maintenance and Continuance of Gasworks—Manufacture and Sale
of Gas Coke and Residual Products.*

17. The Undertakers may on the lands described in the schedule to this Order annexed maintain and continue alter enlarge extend improve renew or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storing of gas and of coke asphaltum pitch coal-tar ammoniacal liquor oil and residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas and supply and sell the same within the limits of supply and may on the same lands manufacture and store residual products as aforesaid and may sell and dispose of the same at their works and elsewhere and they may also erect construct and maintain alter enlarge extend and renew or discontinue houses offices buildings and other works connected with the undertaking.

Undertakers may maintain and continue gasworks on lands described in schedule and may make and sell gas &c.

18.—(a) Subject to the provisions in this section contained the Undertakers may purchase or hire and supply sell let on hire and fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration and charges and make such terms and conditions as may be agreed upon.

Power to supply gas fittings &c. Fittings not to be subject to distress.

(b) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

19. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take acquire and use any leave licence or authority to work use exercise and put in practice any invention under letters patent hereto-

Power to take licences for use of patents.

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A.D. 1911. fore made or hereafter to be made granting any right or privilege of
Longford. working using or vending any invention in relation to the manufacture supply and distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from the materials used therein.

Undertakers may contract for sale of gas in bulk. 20. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

For protection of Longford Urban District Council. 21. For the protection of the council the following provisions unless otherwise agreed between the council and the Undertakers shall apply and have effect (that is to say):—

(1) From and after the commencement of this Order all mains laid or relaid by the Undertakers in any street or footway within the district of the council shall wherever practicable be laid at a depth of not less than two feet six inches and in no case except where prevented by rock at any less depth than one foot six inches from the top of the socket of the main to the surface of the roadway:

(2) The Undertakers shall not on any fair day or market day open or keep open any street within the said district for the purpose of laying or repairing mains except in case of emergency:

(3) The prices to be charged by the Undertakers to consumers of gas in the said district during the period of three years from the commencement of this Order shall not exceed five shillings and threepence per thousand cubic feet for lighting four shillings and sixpence per thousand cubic feet for cooking and heating and four shillings per thousand cubic feet for motive power.

For protection of Midland Great Western Railway of Ireland Company. 22. For the protection of the Midland Great Western Railway of Ireland Company (in this section referred to as "the railway company") the following provision shall apply and have effect (that is to say):—

In case the Undertakers require under the authority of this Order to cross in over or upon the lands of the railway company for the purpose of laying gas mains or other the purposes of their undertaking all such work shall be carried out to the reasonable satisfaction of the chief engineer for the time being of the railway

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
Act, 1911.

company and in the event of the railway company requiring to carry out any works in connection with their railway or canal on ground belonging to them at the commencement of this Order which may in the judgment of the railway company's chief engineer require the altering or removal of any gas mains or other pipes of the Undertakers existing at the commencement of this Order such gas mains or other pipes shall be altered or removed free of expense to the railway company and to the reasonable satisfaction of the railway company's chief engineer.

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Longford.

23. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon any road under the jurisdiction of such road authority or in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences
with road
authorities or
railway or
other com-
panies.

Price of Gas.

24. The standard price to be charged by the Undertakers for gas supplied by them shall be five shillings per thousand cubic feet Provided that the Undertakers may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital or stock as follows:--

Fixing
standard
price of gas
with sliding
scale as to
dividend.

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by three shillings and sixpence on every one hundred pounds of the capital of the Undertakers issued as ordinary capital and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by three shillings and sixpence on every one hundred pounds of the capital of the Undertakers issued as ordinary capital and so in proportion for any fraction of one hundred pounds.

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Longford.

Charges for
gas supplied
by means of
prepayment
meters.

25.—(1) The Undertakers may charge for any gas supplied through a prepayment meter a charge not greater than for gas supplied to ordinary private consumers through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet so supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Pressure and Quality of Gas.

Pressure of
gas.

26.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Testing
place.

27. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Undertakers on the lands described in the schedule to this Order annexed within three months after the commencement of this Order.

Testing for
quality.

28.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
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testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

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Longford.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within three months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Miscellaneous.

29. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Power to refuse to supply persons in debt for other property.

30. At least twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises which ever shall first occur Notice of the provisions of this section shall be endorsed upon every demand note for gas rent.

Gas consumers to give notice to Undertakers before removing.

31. A notice to the Undertakers from a consumer for discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of discontinuance.

32. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being

Period of error in defective meters.

[Ch. clxix.] *Gas Orders Confirmation (No. 4)* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. proved to register erroneously within the meaning of the said Act such
Longford. erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers.

Anti-fluctua-
tors for gas
engines.

33. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

No penalty
in case of
unavoidable
cause.

34. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Undertakers
to pay in-
terest on
deposit.

35. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Proof of
debts in
bankruptcy.

36. Section 140 (Proof of debts in bankruptcy) of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

Time for
making up
and forward-
ing accounts
to local
authorities.

37. Notwithstanding anything contained in section 35 of the Gasworks Clauses Act 1871 the annual statement of accounts of the Undertakers shall be made up to the first day of May in each year and forwarded to the local authority of every district within the limits of supply on or before the first day of August next following and the

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
Act, 1911.

said section shall for the purposes of this Order be read and construed as though in lieu of the thirty-first day of December and twenty-fifth day of March being named therein the first day of May and the first day of August had been so named.

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Longford.

38. Nothing in this Order contained shall alter vary or affect any contract or agreement duly made or any liability incurred before the commencement of this Order.

Saving of
existing con-
tracts &c.

39. If the council shall introduce a Bill into Parliament and bonâ fide promote the same in any one of the next three sessions of Parliament available for Private Bill legislation to empower them to purchase the undertaking of the Undertakers the Undertakers shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase and for that purpose the Undertakers shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if the council obtain an Act authorising such purchase and give a written notice of their intention to purchase within six months of the passing of such Act the Undertakers shall at the expiration of such six months sell and transfer and the council shall purchase and acquire the undertaking property rights powers and privileges of the Undertakers subject to all their existing mortgages obligations and liabilities.

Purchase of
undertaking
by council.

Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Undertakers and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Undertakers For the purposes of this section the expression "Lands Clauses Acts" in this section shall (notwithstanding anything contained in the section of this Order whereof the marginal note is "Incorporation of Acts" or the Interpretation Act 1889) not include the Railways Act (Ireland) 1851 the Railways Act (Ireland) 1860 the Railways Act (Ireland) 1864 or the Railways Traverse Act or any Act for the time being in force amending such Acts :

Provided that in assessing the sum to be paid by the council to the Undertakers the value of the undertaking shall not be deemed to be enhanced or reduced by reason of the making of this Order but in addition to the sum to be paid by the council to the Undertakers under the foregoing provisions of this section the council shall pay to

[Ch. clxix.] *Gas Orders Confirmation (No. 4)* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. the Undertakers the costs charges and expenses of and incident to
Longford. obtaining this Order and winding up the company.

The council shall in the event of such purchase also pay compensation to any officers and servants other than the secretary and engineer in the regular employment of the Undertakers who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Undertakers at the passing of such Act in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Undertakers to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and no such officer or servant who has been in the employment of the Undertakers for fourteen years or upwards shall lose his right to compensation as aforesaid by reason of his declining to continue in the service of the council.

Costs of
Order.

40. All the costs charges and expenses of and incident to the applying for preparing obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULE referred to in the foregoing Order.

GAS LANDS.

A piece of land with gasworks and other buildings thereon situate in the urban district of Longford in the parish of Templemichael in the county of Longford in the occupation of the Undertakers containing by admeasurement 3,800 square yards or thereabouts fronting to the northern side of Great Water Street about 375 yards from Main Street and adjoining on the west side the premises known as the Butter Market.

PRESTON GAS.

Preston.

Order authorising the Preston Gas Company to reduce the illuminating power of their gas and for other purposes.

Short and
collective
titles.

1. This Order may be cited as the Preston Gas Order 1911 and the Preston Gas Acts 1865 to 1894 and this Order may be cited together as the Preston Gas Acts and Order 1865 to 1911.

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
Act, 1911.

A.D. 1911

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

—
Preston.
Commencement
of Order.

3. The several words terms and expressions to which by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

Interpreta-
tion.

4. The Preston Gas Company incorporated by the Preston Gas Act 1865 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

5. As from the first day of October one thousand nine hundred and eleven section 48 of the Preston Gas Act 1894 (in this Order called "the Act of 1894") shall be repealed and in lieu thereof the following provisions shall be in force and have effect (that is to say):—

Quality of
gas and
testing.

(A) The prescribed number of candles shall be not less than fourteen:

(B) The quality of gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871:

(c) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing:

(d) The Undertakers shall before the first day of October one thousand nine hundred and eleven provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

6.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Pressure.

[Ch. clxix.] *Gas Orders Confirmation (No. 4)* [1 & 2 GEO. 5.]
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A.D. 1911.

Preston.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

7. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Price of gas
Amendment
of section 47
of Preston
Gas Act
1894.

8. As from the first quarter day after the commencement of this Order the standard price for gas supplied by the Undertakers shall be three shillings and fourpence per thousand cubic feet and section 47 of the Act of 1894 shall be read and construed as if instead of the words three shillings and tenpence farthing and instead of the words three shillings and fivepence halfpenny the words three shillings and fourpence were inserted in the said section.

Power to
create a
special pur-
poses fund.

9.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
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by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other. A.D. 1911.
Preston.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Undertakers at the commencement of this Order shall be credited to the special purposes fund and section 31 of the Act of 1894 is hereby repealed.

10. Section 32 of the Act of 1894 is hereby repealed and subject to the provisions of the next succeeding section the marginal note whereof is "Provision for redemption of obsolete capital" if the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year: Application of excess of profits.

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates on the preference and ordinary capital of the Undertakers.

11. In any year after the year one thousand nine hundred and eleven in which the divisible profits of the Undertakers shall exceed the amount required to pay the standard dividends the Undertakers shall transfer to a fund to be called "the capital redemption fund" the balance of such divisible profits remaining after paying the standard dividends and carrying forward to the credit of the divisible profits of the undertaking for the next following year such a sum as the directors of the Undertakers may in their discretion determine but not exceeding the amount needed to pay one year's dividends on the preference capital and on the ordinary capital of the Undertakers for the time being at the authorised rates. Provision for redemption of obsolete capital.

Every sum so transferred shall be applied by the Undertakers as soon as reasonably possible to the purchase of ordinary or preference shares or stock in the capital of the Undertakers.

Shares or stock so purchased shall forthwith be cancelled and extinguished for all purposes whatsoever and thereupon the Undertakers shall duly make an entry in their books to that effect.

Except in the open market the Undertakers shall not purchase any shares or stock at a price exceeding the price at which according to the records of the Undertakers the last transaction in shares or stock of the same class took place and as soon as possible after each purchase under

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A.D. 1911. this section the Undertakers shall inform the town clerk of the borough
Preston. of Preston of the amount of each class of stock purchased and the price paid therefor.

As soon as the Undertakers shall have applied sums amounting in the aggregate to one hundred thousand pounds to the purchase of shares or stock in manner aforesaid this section shall cease to operate and have effect.

Undertakers
to supply
suitable
burners
gratis in
exchange
for burners
in use.

12. The Undertakers if and when required at any time within two years from the commencement of this Order by any consumer of gas supplied by the Undertakers shall supply him and fix free of charge a sufficient number of flat-flame burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Order in substitution for the burners (not being incandescent burners) in use by such consumer at the commencement of this Order.

Notice of the provisions of this section shall be printed upon every demand note for gas charges payable to the Undertakers during the period of two years hereinbefore mentioned.

Charge for
gas supplied
by means of
prepayment
meters.

13:—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

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Act, 1911.

14. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Undertakers may cease to supply gas to such consumer. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

A.D. 1911.
Preston.
Power to
require use
of anti-fluc-
tuators for
gas engines.

15. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

UXBRIDGE GAS.

Order extending the limits of supply of the Uxbridge Gas Company and empowering that company to maintain continue and enlarge existing gasworks and to supply gas in certain parishes in the counties of Buckingham and Hertford and for other purposes.

Uxbridge.

Preliminary.

1. This Order may be cited as the Uxbridge Gas Order 1911 and the Uxbridge Gas Act 1861 the Uxbridge Gas Act 1873 and the Uxbridge Gas Act 1906 (all of which are in this Order referred to as "the Acts of 1861 to 1906") and this Order may be cited together as the Uxbridge Gas Acts and Order 1861 to 1911.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order or are

Incorporation of Acts.

[Ch. clxix.] *Gas Orders Confirmation (No. 4)* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. inconsistent with this Order) Provided that section 13 of the Gas-
works Clauses Act 1847 shall be read as if the words "or any
premises" were inserted after the words "private building" and as if
the words "Provided also that every such contract entered into by the
" Company shall be alike in terms and amount under like circumstances
" to all consumers " were added at the end of that section and the said
provisions of the said Gasworks Clauses Acts shall apply as well to
the mains pipes and works of the Undertakers laid down or constructed
before the commencement of this Order and situate within the extended
limits of supply as to any mains pipes or works which may be laid
down or constructed under the authority of this Order.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act
in whole or in part incorporated with this Order and by the Gas and
Water Works Facilities Act 1870 meanings are assigned have in this
Order the same respective meanings unless there be something in the
subject or context repugnant to such construction And in the construc-
tion of this Order or of any such Act for the purposes of this Order
the expression "the undertaking" shall include the gasworks and
works connected therewith by the Acts of 1861 to 1906 and this Order
authorised to be constructed maintained and continued.

Undertakers.

Undertakers.

5. The Uxbridge Gas Company shall be the Undertakers for the
purposes of this Order and are in this Order referred to as "the
Undertakers."

Extension of Limits of Supply.

Extension of
limits of
supply.

6. The limits of supply of the Undertakers are hereby extended
so as to include the following parishes and part of a parish (in this
Order referred to collectively as "the extended limits of supply")
namely :—

- (1) The parishes of Chenies Amersham Penn Little Missenden
Great Missenden and so much of the parish of Hughenden
as lies to the east of an imaginary straight line drawn in
a southerly and south-easterly direction from the southern-
most point of the parish boundary between Great Missenden
and Hughenden at Stoney Green to a point on the road
leading from Cryer's Hill to Brand's House ten chains
measured in a westerly direction along that road from the
junction of roads at Cryer's Hill from that point in a
south-easterly and easterly direction parallel to and at a
distance of ten chains to the south and south-east of the
road leading from Cryer's Hill through Widmer's End

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into the main road from Wycombe to Amersham to and terminating at the parish boundary between the parishes of Hughenden and Penn ten chains south-west from the junction of the last-mentioned roads all in the county of Buckingham; and

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 Uxbridge.

(2) the parishes of Flaunden and Sarratt both in the county of Hertford :

And the Undertakers shall have and may exercise within the extended limits of supply all and the like powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply as defined by the Acts of 1861 to 1906 and the said Acts shall apply and be construed accordingly.

Purchase of the Undertaking of the Amersham Gas Light and Coke Company Limited.

7. The purchase by the Undertakers of the property and undertaking of the Amersham Gas Light and Coke Company Limited now in liquidation (hereinafter referred to as "the Amersham Company") upon the terms of an agreement dated the twenty-ninth day of July one thousand nine hundred and ten and made between the Amersham Company of the one part and the Undertakers of the other part is hereby confirmed and as and from the first day of July one thousand nine hundred and ten the property and undertaking of the Amersham Company shall be deemed to have vested in and to have become part of the undertaking of the Undertakers for all the purposes of the Acts of 1861 to 1906 and the provisions of the Acts of 1861 to 1906 and this Order shall apply and be construed accordingly.

Confirming
 purchase
 of Amer-
 sham Gas
 Company's
 undertaking.

Maintenance and Continuance of Gasworks—Manufacture and Sale of Gas and Residual Products.

8. The Undertakers may on the lands described in the schedule to this Order annexed so long as they are possessed of the same maintain and continue and alter enlarge extend improve renew or discontinue the existing gasworks and works connected therewith and may construct erect make maintain alter enlarge extend improve renew or discontinue additional gasworks retorts retort-houses gas-holders receivers purifiers meters apparatus and works for the manufacture distribution storage conversion and sale of gas and of residual products arising in or resulting or producible from or used in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas upon such

Lands for
 gasworks
 purposes.

[Ch. clxix.] *Gas Orders Confirmation (No. 4) [1 & 2 Geo. 5.]*
Act, 1911.

A.D. 1911. lands and supply and sell the same and may on the same lands make
Uxbridge. convert and store residual products as aforesaid and may sell, and
dispose of the same at the works and elsewhere and they may also
construct and maintain alter enlarge renew or discontinue houses offices
buildings and other works connected with the undertaking.

Miscellaneous Provisions.

Application
of capital.

9. The Undertakers may apply any capital raised under the powers
of the Acts of 1861 to 1906 for any of the purposes of this Order
being purposes to which capital is properly applicable and the pay-
ment by the Undertakers of the sum of five thousand and fifty pounds
for the purchase of the Amersham Company's undertaking is hereby
declared and shall be deemed to have been a proper application of
capital within the meaning of this section.

Saving
powers to
purchase
lands by
agreement.

10. The purchase and acquisition by the Undertakers of the lands
described in the schedule to this Order annexed shall not diminish
the quantity of land which they may purchase under the powers of
section 9 (Power to purchase lands by agreement) of the Uxbridge
Gas Act 1906 and the Undertakers are hereby authorised to hold
purchase and acquire the lands described in the said schedule in
addition to any lands which they might hold purchase or acquire under
the said section 9.

For pro-
tection of
county coun-
cil of Bucks.

11. Section 54 (For protection of Middlesex County Council) of
the Uxbridge Gas Act 1906 shall take effect for the protection of the
council of the administrative county of Buckingham in respect of any
works affecting main roads or bridges within the extended limits of
supply which the council of that county is bound to maintain or repair
and the said section shall apply and be construed accordingly.

For pro-
tection of
Hertfordshire
County
Council.

12. Notwithstanding anything contained in this Order the following
provisions for the protection of the county council of the administrative
county of Hertford (in this section referred to as "the county council")
shall unless otherwise agreed between the Undertakers and the county
council have effect (that is to say):—

(1) Section 54 (For protection of Middlesex County Council) of the
Uxbridge Gas Act 1906 except subsection (5) of the said
section shall take effect for the protection of the county
council in respect of any works affecting main roads or
bridges within the extended limits of supply which the
county council are bound to maintain or repair and the said
section (except as aforesaid) shall apply and be construed
accordingly:

[1 & 2 GEO. 5.] *Gas Orders Confirmation (No. 4)* [Ch. clxix.]
Act, 1911.

(2) No claim shall be made against the county council for damage to any works of the Undertakers unless the Undertakers shall within forty-eight hours of the discovery of such damage have given written notice thereof to the county surveyor and shall have given him a reasonable opportunity and facilities for inspecting such works: A.D. 1911.
Uxbridge.

(3) The provisions of this section shall be in addition to and not in substitution for or derogation from any other provisions of any Act of or relating to the Undertakers or their undertaking which may enure for the protection or benefit of the county council.

13. All the costs charges and expenses of and incidental to the purchase and transfer to the Undertakers of the Amersham Company's undertaking and applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of
Order.

The SCHEDULE above referred to.

GAS LANDS.

A piece of land situate at Amersham in the county of Buckingham belonging to or reputed to belong to the Amersham Company bounded on or towards the north-east and south by property belonging or reputed to belong to George Weller on or towards the north-west by the Misbourne stream and on or towards the south and west by property belonging or reputed to belong to William Wykeham Tyrwhitt Drake and containing in the whole 3 roods or thereabouts and a strip of land 12 feet in width extending from the southern or south-eastern boundary of the land above described to the public road in Amersham known as "The Broadway."

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

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